

Rakesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 24 May 2016 · WRIT - C No. - 23908 of 2016 · **Writ disposed; petitioner relegated to clause 6.5(b); recovery stayed four weeks; supply to be restored on deposit.**

HEADNOTE

A writ challenging recovery of electricity dues by disputing bill accuracy, where disputed questions of fact arise, is disposed of with liberty to complain under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The competent authority must decide that complaint in accordance with law; recovery remains in abeyance for a short window; supply is to be restored forthwith after the consumer deposits the amount.

FACTUAL SUMMARY

The petitioner, Rakesh Kumar, approached the Allahabad High Court challenging recovery proceedings started by the electricity corporation for outstanding dues, and disputed the correctness of the bill on which that recovery was based. Counsel for the petitioner and for the State respondents were heard. The Court recorded that the dispute was over bill accuracy and that disputed questions of fact were involved, with a statutory complaint available under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy complaint as alternate remedy

HOLDING

Where a consumer disputes the accuracy of a bill and recovery has been initiated, clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the complaint before the competent authority. Because disputed questions of fact are involved, the writ is disposed of with liberty to make that complaint within one week; the authority is to consider and pass orders in accordance with law within two weeks; recovery remains in abeyance for four weeks or until disposal of the complaint, whichever is earlier; and after the petitioner deposits the amount, the electricity connection is to be restored forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILL AND THE DISPUTED QUESTIONS OF FACT ON WHICH RECOVERY WAS FOUNDED

¶ 1